

the statute must operate, notwithstanding the intention of the settlor to the contrary, for the will of the subject cannot control the express enactment of the legislature (*b*). In order, therefore, to prevent the legal estate from being executed in the *cestui que trust*, it is necessary to vest in the trustee not only the ancient common law fee, but also the primary use, as, by conveying or devising "to the trustee and his heirs *to the use* of the trustee and his heirs (*c*)," or "unto and *to the use* of the trustee and his heirs (*d*)"; for although by the latter form of *limitation the [*210] trustee will be *in* by the common law, yet, as the possession and the use are both vested in the trustee, the trust over, as not being the primary use, will not be affected by the statute.

(*b*) See *Cawardine v. Carwardine*, 1 Eden, 36. In *Gregory v. Henderson*, 4 Taunt. 772, Judges Chambre and Gibbs laid a stress on the testator's *intent*, but Judge Heath referred the case to the true principle, viz. that the trustees having a duty to perform, it was a trust special, and so out of the statute.

(*c*) *Robinson v. Comyns*, Cas. t. Talb. 164; *Attorney-General v. Scott*, id. 138; *Hopkins v. Hopkins*, 1 Atk. 589, *per* Lord Hardwicke.

(*d*) *Doe v. Passingham*, 6 B. & C. 305; *Doe v. Field*, 2 B. & Ad. 564; *Harris v. Pugh*, 12 Moore, 577; S. C. 4 Bing. 335; *Rackham v. Siddall*, 1 Mac. & G. 607.

McCord, 252; *Adams v. Guerard*, 29 Ga. 676; *You v. Flinn*, 34 Ala. 411; *Williams v. Church*, 1 Ohio St. 497; *Nelson v. Davis*, 35 Ind. 474; *Witham v. Brooner*, 63 Ill. 344; *Ready v. Kearsley*, 14 Mich. 228; *Guest v. Farley*, 19 Mo. 147; *Bayer v. Cockerill*, 3 Kan. 292. The statute does not execute the use in case of active trusts, and if anything remains for the trustee to do, the legal title remains in him; *Leggett v. Perkins*, 2 Comst. 297; *Norton v. Leonard*, 12 Pick. 152; *Meacham v. Steele*, 93 Ill. 135; *Adams v. Perry*, 43 N. Y. 487; *Morton v. Barrett*, 22 Me. 261; *Wood v. Mather*, 38 Barb. 473; *Nickell v. Handly*, 10 Gratt. 336; but see *McNish v. Guerard*, 4 Strob. Eq. 66. If several trusts are set forth together, some of which would be immediately executed and some not, the trustee holds the legal title; *Stockbridge v. Stockbridge*, 99 Mass. 244, but see *Leonard v. Diamond*, 31 Md. 536.

If the trust be for a married woman to her separate use, or to permit and suffer her to receive the rents, the legal title will vest in the trustee; *Richardson v. Stodder*, 100 Mass. 528; *Ayer v. Ayer*, 16 Pick. 330; *Rogers v. Ludlow*, 3 Sandf. Ch. 104; *Franciscus v. Reigart*, 4 Watts. 109; it has sometimes been held that property to "the sole and separate use" will not be recognized; *Westcott v. Edmunds*, 68 Pa. St. 34; *Roberts v. Moseley*, 51 Mo. 282; and *Ware v. Richardson*, 3 Md. 505. Commenting on the case of *Williams v. Waters*, the trust certainly would fail unless the woman was married, or in contemplation of marriage; *Yarnall's App.* 70 Pa. St. 339; *Hamersley v. Smith*, 4 Whart. 129; for sole use of C. and her children, not executed until possibility of children is extinct; *Brady v. Walters*, 55 Ga. 25.